

# FEDERAL MARITIME COMMISSION

## Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

SM LINE CORPORATION, *Respondent*.

**DOCKET NO. 23-01**

Served: February 1, 2024

**ORDER OF:** Alex M. CHINTELLA, *Administrative Law Judge*.

### ORDER SETTING STATUS CONFERENCE

On January 29, 2024, Complainant Samsung Electronics America, Inc. (SEA) filed a motion for determination of a claim of privilege with respect to a document turned over by Respondent SM Line Corporation in discovery. SM Line filed its opposition on February 1, 2024, along with a motion for confidential treatment. Also on January 29, 2024, SEA filed a motion for leave to continue the Rule 143(b)(6) deposition of SM Line's corporate designee, along with a motion for confidential treatment. On January 31, 2024, SM Line filed a motion to quash four deposition notices served by SEA, along with a motion for confidential treatment.

Pursuant to Rule 141(i), and given that fact discovery closes on February 7, 2024, the parties are hereby **ORDERED** to appear for a conference on **February 2, 2024 at 3:00 PM EST**. A Teams link for the conference will be provided. Counsel should be prepared to discuss each motion. In order to avoid delay, I will rule on the motions at the conference. Any outstanding written oppositions to the subject motions must be filed by 1:00 PM EST on February 2, 2024. In the alternative, and considering time constraints, parties may present their oppositions orally at the conference.

In addition, SEA must submit for *in camera* inspection, by 3:00 PM EST on February 1, 2024, the document that is the subject of its motion regarding privilege, SM Line\_0156832, in the form or forms (native Excel, Adobe, etc.) it was produced by SM Line, including any cover pages, metadata, and/or accompanying transmittal letter. At the same time, SEA must also provide a complete copy of the parties' confidentiality agreement pertaining to discovery. These documents should be submitted to me in accordance with the instructions in my email to the parties earlier today.

**Alex Michael  
Chintella** Digitally signed by Alex  
Michael Chintella  
Date: 2024.02.01  
12:23:57 -05'00'

Alex M. Chintella  
Administrative Law Judge